

what documents the Defendant is compellable to produce, are the following :—*Attorney General vs. Berry*, 2 Collyer, 33 ; 9 Jurist, 224 ; *Brown vs. Perkins*, 2 Hare 540 ; 8 Jurist, 186 ; *Atkins vs. Wright*, 14 Vesey, 211 ; *Sweet vs. Hunter*, 9 Jurist, 807 ; *Combe vs. Corporation of London*, 10 Jurist, 57 ; *Harris vs. Harris*, 4 Hare, 179 ; *Bannatyne vs. Leader*, 10 Simons, 230 ; *Edwards vs. Jones*, 1 Phillips, 501 ; *Smith vs. Duke of Beaufort*, 1 Phillips, 209 ; *Marquis of Bute vs. Glamorganshire Canal Company*, 1 Phillips, 681 ; *Smith vs. Dowling*, 10 Jurist, 63 ; *Flight vs. Robinson*, 8 Beaven, 22 ; *Steele vs. Stewart*, 1 Phillips, 471 ; *Woods vs. Woods*, 4 Hare, 83 ; *Holmes vs. Baddley*, 1 Phillips, 476 ; *Belshaw vs. Perceval*, 10 Jurist, 772 ; *Wroughton vs. Barclay*, 11 Jurist, 274 ; *Johnston vs. Tucker*, 11 Jurist, 382 ; *Price vs. Gordon*, 7 Jurist, 1076 ; *Grane vs. Cooper*, 4 Mylne and Craig 263 ; *Gerard vs. Penswick*, 1 Swanston, 533. In many of these cases, the right is shown to be restricted to the admissions in the answer ; but it is clear that such a limitation cannot now hold, because the answer is not now a discovery, and the Defendant may omit to name as many papers as he pleases, and the above Order permits the motion to be supported by affidavit, whereas before, the answer could not be added to by affidavit. It seems then, that now each party can be compelled to produce all papers of such character as a Defendant, admitting them to be in his possession, could formerly have been compelled to produce. In effect, all that are relevant to the issue, and as to which there is no protection on any special ground, such as that of confidential communication between Solicitor and Client.

The Order of course may be obtained upon petition or motion without notice, and the petition should specify the number of days within which the papers are to be deposited.

It may frequently happen that a Plaintiff or Defendant, when under examination, speaks of documents which were not previously known to the opposite party, and the produc-